



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

FEB 12 1991

DOT-E 10542

1. Air Charter Systems (ACS) Quebec, Canada (U.S. Agent: Burwell, Hansen, Peters & Houston, Washington, D.C.), is hereby granted an emergency exemption from certain provisions of this Department's Hazardous materials Regulations to transport packages prescribed herein of a Class A explosive for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of explosive bombs in cargo aircraft, and provide no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on an application dated February 12, 1991, submitted on behalf of (ACS) in accordance with 49 CFR 107.113 and support letter dated February 12, 1990, submitted by the Department of Navy (Navy International Program office). Granting of this exemption is in the national interest.

3. HAZARDOUS MATERIALS (Descriptor and class). Mk 82 Explosive bombs, Class A explosives (EX-8810744).

4. PROPER SHIPPING NAME (49 CFR 172.101). Explosive bomb.

5. REGULATION AFFECTED. 49 CFR 172.101, Column (6) (b), 175.3, 175.320.

6. MODES OF TRANSPORTATION AUTHORIZED. Cargo aircraft only.

7. SAFETY CONTROL MEASURES. Packagings prescribed are cradled pallets containing 12 bombs per pallet. The pallets must be secured to prevent movement during transportation.

8. SPECIAL PROVISIONS.

a. A copy of this exemption must be carried aboard each aircraft used to transport packages covered by this exemption.

b. The carrier must conform to the requirements of 49 CFR 175.320(b) except subparagraphs (5) and (7).

c. This is a one time shipment of 168 explosive bombs scheduled to depart Tinker Air Force Base, Oklahoma destined for Dhahran, Saudi, Arabia.

d. This exemption does not grant authority to use foreign controlled airspace or airports outside the United States.

e. No other cargo is authorized aboard the aircraft.

f. The explosive bombs must be loaded and unloaded by or under the direct supervision of DOD personnel.

9. REPORTING REQUIREMENTS: Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. February 15, 1991, or upon completion of one shipment whichever occurs earlier.

Issued at Washington, D.C.

Suzanne Hedgepeth

Alan I. Roberts

for Associate Administrator
for Hazardous Materials Safety

FEB 12 1991

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: FAA